

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024**:

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkxwckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SOLANO,

Petitioner

VS.

CARL LEE TURNER JR,

Respondent

) Case Number: FCS-25-357580

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

DE NOVO HEARING SET RE: RESPONDENT'S REQUEST FOR ORDER OF HEARING
NOTICE OF WAGE/EARNING ASSIGNMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are the Department of Child Support Services, Father Carl Lee Turner Jr., and Mother Melinda Dela Cruz. Father and Mother have one minor child, Sanaa (DOB: 3/30/2012).
- 2) The parties formerly had a child support case open in Solano County, which was later transferred to San Francisco County.
- 3) On 5/14/2026, Father filed a Request for Hearing Regarding Earnings Assignment which states the following: (a) the total amount of arrearages claimed as owing is incorrect and (b) the monthly arrearage payment stated in the earnings assignment creates an undue hardship (Father did not state why). Father also requests that child support be terminated “due to 14th Amendment violation and 15 U.S.C.S. 1691(a)(D)(E).”
- 4) The hearing on Father’s Request for Hearing was originally set for 6/3/2026 before Commissioner Rahim in Dept. 414. On that day, Commissioner Rahim issued Findings and

1 Recommendations which continued the hearing to 8/19/2026 in Dept. 414 and ordered Father to
2 file and serve documentation from Solano County Superior Court indicating whether this motion
3 should be heard by Solano County or San Francisco County.

- 4 5) On 6/17/2026, Judge Wiley confirmed Commissioner Rahim's Findings and Recommendations
5 issued 6/3/2026 as an order of the Court because no objection was filed within 10 court days.
- 6 6) On 8/19/2026, Father, Mother, and Department of Child Support Services attorney Paul
7 Spraggins appeared in Dept. 414 and made argument. On that day, Commissioner Rahim issued
8 Findings and Recommendations denying the requests set forth in Father's 5/14/2026 Request for
9 Hearing Regarding Earnings Assignment. Commissioner Rahim noted that Father argued that he
10 was not given sufficient opportunity to present his financial information before Solano County
11 made the child support orders that Father now challenges. Commissioner Rahim made the
12 following findings: "The record reflects that Respondent was present at the 5/12/2023 hearing,
13 where the matter was continued to allow him to provide the requested financial documentation.
14 Despite being aware of the continued hearing date, Respondent failed to provide the
15 documentation and did not appear at the subsequent hearing. More importantly, Respondent
16 acknowledges that he previously sought the same relief in Solano County Superior Court,
17 wherein his request was denied with prejudice on 12/9/2024. Respondent did not seek
18 reconsideration or appeal that ruling. His present request is therefore untimely and constitutes an
19 improper attempt to relitigate matters that have already been adjudicated. Respondent's assertion
20 that he now has additional case law does not provide a basis to reopen or relitigate the prior
21 determination. Accordingly, the court finds that Respondent's present claims are barred by prior
22 adjudication and should be denied.... Accordingly, the court should decline to set aside or
23 invalidate the underlying support orders, dismiss the arrearages, terminate or invalidate the
24 enforcement actions, or grant Respondent's requested relief regarding his passport, credit
25 reporting, or other enforcement remedies."
- 26 7) On 8/25/2026, Father filed a Notice of Objection to Commissioner Rahim's 8/19/2026 Findings
27 and Recommendations.
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1 8) On 8/26/2026, Judge Wiley issued a Review of Commissioner's Findings of Fact and
2 Recommendation and set a de novo hearing on 9/10/2026 in Dept. 404. Judge Wiley's notice was
3 mailed to each party that same day, along with a copy of the Tentative Ruling Instructions.

4 **B. Findings and Order**

- 5 1) It appears undisputed that Father was present at the 5/12/2023 hearing in Solano County, the
6 matter was continued to allow Father to provide the requested financial documentation, Father
7 failed to provide the financial documentation prior to the hearing, and Father did not appear at the
8 hearing at which the underlying child support order was made. It also appears undisputed that
9 Father has already sought the relief he is now seeking in Solano County Superior Court, wherein
10 his request was denied with prejudice on 12/9/2024.
- 11 2) The Court therefore finds that this is an improper attempt by Father to relitigate matters that have
12 already been adjudicated. The relief requested in Father's Request for Hearing Regarding
13 Earnings Assignment filed 5/14/2026 is denied.
- 14 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JOSEPH O. ALVAREZ JR.,

Petitioner

VS.

JESSICA MARGARITA RODRIGUEZ,

Respondent

) Case Number: FPT-26-378839

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME)

TENTATIVE RULING

The parties have agreed to continue the hearing in this matter. The hearing on Petitioner's Request for Order filed 6/18/2026 is hereby continued to **Thursday, 1/7/2027 at 9:00 AM in Dept. 404.**

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAIRO ZERMENO,

Petitioner

VS.

CLAUDIA GOYTIA,

Respondent

) Case Number: FPT-26-378919

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER OF CHILD CUSTODY, VISITATION (PARENTING TIME), CHILD
SUPPORT

TENTATIVE RULING

The parties are ordered to appear at 9:00 AM on 9/10/2026 in Department 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Jairo Zermeno (Father) and Respondent Claudia Goytia (Mother) have one minor child together, Valentino, who is almost 2 years old (DOB 9/25/2024). Father recently moved to San Jose; Mother lives in San Francisco.
- 2) On 5/22/2026, Father filed a petition to establish parental relationship and a request for custody and parenting time orders. The Court has reviewed and considered Mother's declaration filed 8/26/2026 and Father's declarations filed 9/2/2026 and 9/3/2026. Mother states, among other things, that she has been Valentino's primary caretaker throughout his life. She states that Father uses marijuana, leaves edibles in places Valentino can reach, and has an unstable work schedule that requires him to travel internationally. Mother states that since Father moved out of their

1 home to San Jose, she is unable to maintain a place in San Francisco; she wishes to move to Los
2 Angeles, where she has family support. Father states, among other things, that he has been
3 involved in Valentino's life. He states that although the parties discussed moving to Los Angeles,
4 that is no longer the plan. He states that if Mother moves to Los Angeles, he would like Valentino
5 to stay with him in San Jose, where he recently rented a two-bedroom apartment.

- 6 3) The parties attended mediation and did not reach an agreement. At mediation, Father requested
7 joint legal and physical custody on a "2-2-3 parenting schedule" (but what he proposes is a 2-2-5-
8 5 schedule, with Valentino being in Mother's care every Monday and Tuesday, in Father's care
9 every Wednesday and Thursday, and the parties alternating the weekends). Father would like the
10 exchanges to occur at the Redwood City Public Library. At mediation, Mother stated she wishes
11 to move to Los Angeles with Valentino and for Father to have parenting time on alternating
12 weekends, with either Mother flying with Valentino to San Francisco or both parties driving and
13 meeting at a midway point between their homes.

14 **B. Findings and Orders**

- 15 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
16 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
17 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
18 child is the United States.
- 19 2) **The parties are ordered to appear in person or via Zoom Video at 9am on 9/10/2026 in**
20 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SARAH NADREAU,

Petitioner

VS.

NICHOLAS KARAMBATSAKIS,

Respondent

) Case Number: FDI-24-799263

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS, PLEASE SEE #7 FOR OTHER ORDERS
REQUESTED; REQUEST FOR ORDER RE ATTORNEY FEES AND COSTS

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) Petitioner Sarah Nadreau (Wife) married Respondent Nicholas Karambatsakis (Husband) on 8/4/2020. Wife contends the parties separated on 12/15/2023, for a marriage of 3 years and 4 months. Husband did not file a Response to the Petition and his position on the date of separation is unknown. The parties do not have minor children. Wife is represented by attorney Melissa Polk. Husband is represented by attorney Amrit Kullar.
- 2) On 11/20/2024, a Stipulated Judgment was entered which terminates the Court's jurisdiction to award spousal support to either party and divides the parties' community property. The Judgment also provides, "The Respondent (Nicholas) will spearhead the research and acquisition of a religious annulment through the Greek Orthodox Church. The Petitioner (Sarah) agrees to provide any or sign any pertinent documentation thereof (provided that all documentation is truthful and accurate). Both the Petitioner and Respondent will each share 50% of the financial burden for any legal or professional fees associated with the acquisition of this religious

annulment, up to \$485 or \$242.50 each. If the overall costs exceed the amount of \$485, the Respondent will cover the remainder without contribution from the Petitioner.”

Wife’s 5/19/2026 Request for Order

3) Now on for hearing is Wife’s Request for Order filed 5/19/2026. Wife states that although Husband has stated he has begun the process of obtaining an annulment through the Greek Orthodox Church, Husband refuses to provide documentation proving that he has started the process because the Judgment does not require him to do so. Wife asks the Court for orders for:

- a. An order that Nicholas, be ordered to comply with the *Judgment of Dissolution*, specifically Attachment FL-345 #7, requiring him to spearhead and complete the Greek Orthodox religious annulment of the parties’ marriage;
- b. An order that Nicholas be ordered to complete all necessary steps required to obtain the Greek Orthodox religious annulment within 60 days of the Court’s order;
- c. An order that Nicholas be ordered to provide me with verifiable written proof that the annulment has been completed, including official confirmation from the appropriate Greek Orthodox Church authority;
- d. An order that Nicholas be ordered to provide within 15 days, all documentation demonstrating the status of the annulment process, including but not limited to copies of applications submitted, proof of submission, receipts and invoices and any documents reflecting status and expected timeline;
- e. An order that Nicholas be ordered to pay my attorney’s fees and costs in the amount of \$5,000, pursuant to Family Code Section 271, 2030, and 2032 on his failure to comply with the *Judgment* and the necessity of bringing this motion.

4) On 5/15/2026, Wife’s attorney Melissa Polk filed a declaration stating that Wife has paid \$5,000 in attorney’s fees and costs to date to create the case file, review Wife’s documents, review the Judgment, advise Wife, and prepare the moving papers for Wife’s request.

5) On 5/15/2026, Wife filed a Memorandum of Points and Authorities citing Family Code sections 271 and 290, Code of Civil Procedure section 128(a), and supporting case law.

6) On 5/15/2026, Wife filed an Income and Expense Declaration. Wife states she is a Tenured Opera Chorister for the San Francisco Opera. Wife states she works 35 hours per week and earns \$8,087

1 per month. In later declarations, Wife states her work is seasonal and she only works nine months
2 out of the year for the opera. In her off months, she uses her savings and supplements her income
3 with teaching jobs. Wife states her estimated monthly expenses total \$4,287, of which \$1,000 is
4 paid by others. Wife states she has \$21,313 in cash savings and \$48,825 in personal property.
5 Wife states she owes \$47,362 in student debt. Wife states she has paid her attorney \$5,000 to date
6 using money loaned by a friend.

- 7 7) On 6/22/2026, Husband filed an Income and Expense Declaration. Husband states he works as a
8 Project Coordinator for Bonneville Labs, LLC. Husband states he works 40 hours per week and
9 earns \$7,083.33 per month. Husband states his monthly expenses total \$5,751, of which \$2,000 is
10 paid by others. Husband states he has \$192,910 in cash savings, \$229,490 in easily saleable
11 investments, and \$20,000 in personal property.
- 12 8) On 8/12/2026, Husband filed a Responsive Declaration asking the Court to deny all of Wife's
13 requests and grant him \$2,500 in Family Code section 271 attorney's fees sanctions. Husband
14 states he immediately began researching the process to obtain a Greek Orthodox annulment
15 following entry of the Judgment. Husband states he spoke to family members in Greece,
16 individuals familiar with the Greek legal and ecclesiastical systems, spoke with clergy members,
17 and pursued multiple avenues for locating counsel in Greece. Husband states it took him several
18 attempts to secure legal representation in Greece. Husband also states he does not speak Greek
19 fluently and so many communications had to be facilitated through family members. Husband
20 states he incurred \$3,515.70 to date associated with notarization services, apostilles, translations,
21 preparation of powers of attorney, attorney certifications, Greek administrative requirements,
22 court filings, and shipment of documents to Greece. Husband states that on 5/21/2026, the Court
23 of First Instance of Athens accepted the matter and has scheduled a hearing for 11/12/2026
24 concerning recognition of the parties' United States divorce. Husband states that once the hearing
25 date was confirmed, he "promptly" informed Wife. Husband attached to his Responsive
26 Declaration an email to Wife dated 6/8/2026 wherein he states, "I received notice from my
27 attorney in Greece that the court hearing for recognition of the U.S. divorce is scheduled for
28 November 12th. I've also been advised that it will likely take approximately 3-4 months after the
29 hearing for the judgment to be finalized, which is necessary before the church can proceed with

1 the annulment process. As mentioned in my earlier communications, I'll reach out again once that
2 step has been completed or if anything materially changes before then. Given the current timeline,
3 the next update will likely be in early 2027." Wife responds, "Can you please provide me with the
4 supporting documentation?" Husband also attached to his Responsive Declaration emails between
5 the parties dated 7/7/2025 through April 2026 discussing the annulment process, what Husband
6 had been doing to date, Wife's requests for documents showing Husband's progress, and
7 Husband's response on 4/2/2026 of, "I'm not refusing to share the receipts; I've already
8 confirmed that I will provide the relevant receipts once the progress is complete, in line with our
9 agreement and the timing of payment. There isn't a requirement for interim sharing of
10 documentation, so I'll continue with that approach and provide updates at the milestones
11 previously outlined. If anything time-sensitive comes up that requires your input, I'll reach out."
12 Husband also attached documents to his Responsive Declaration showing the steps he has taken
13 to date and the payments he has made to work on this issue.

14 9) On 8/12/2026, Husband's attorney Amrit Kullar filed a declaration arguing that Husband has
15 acted in good faith to comply with the Judgment.

16 10) On 8/12/2026, Husband's mother Maria Karambatsakis filed a declaration attesting to the efforts
17 Husband has taken to work on the annulment issue.

18 11) On 8/12/2026, Husband's psychiatrist Riana Chagoury-Leake, PsyD filed a declaration attesting
19 to the worry and emotional strain the process of obtaining an annulment has had on Husband.

20 12) On 8/12/2026, Husband filed a Memorandum of Points and Authorities.

21 Husband's 6/23/2026 Request for Order

22 13) Also on for hearing is Husband's Request for Order filed 6/23/2026 seeking \$10,000 in need-
23 based attorney's fees and costs under Family Code sections 2030 and 2032.

24 14) On 6/23/2026, Husband's attorney Amrit Kullar filed a declaration. Mr. Kullar states that
25 Husband has incurred \$3,366.50 in attorney's fees and costs thus far and anticipates Husband's
26 fees and costs will exceed \$10,000 to resolve the pending issues.

27 15) On 8/18/2026, Mr. Kullar filed an amended declaration stating Husband paid him a \$4,000
28 retainer and he continues to expect Husband's fees and costs will exceed \$10,000 to resolve the
29 pending issues.

1 16) On 8/20/2026, Wife filed a Responsive Declaration asking the Court to deny Husband's request
2 for need-based fees and an order requiring Husband to provide her with documentation showing
3 the steps he has taken to comply with the Judgment. Wife states that it is actually Husband who
4 has greater resources with which to pay legal fees.

5 17) On 8/20/2026, Wife filed a Memorandum of Points and Authorities.

6 18) On 9/1/2026, Husband filed a Reply Brief.

7 **B. Findings and Order**

8 1) Wife's request for an order that Husband be ordered to comply with the *Judgment of Dissolution*,
9 specifically Attachment FL-345 #7, requiring him to "spearhead and complete" the Greek
10 Orthodox religious annulment of the parties' marriage is denied. The Judgment requires Husband
11 to "spearhead the research and acquisition of a religious annulment." The Court finds that
12 Husband is already in compliance with this provision and is making good faith efforts to obtain a
13 Greek Orthodox religious annulment.

14 2) Wife's request for an order that Husband be ordered to complete all necessary steps required to
15 obtain the Greek Orthodox religious annulment within 60 days of the Court's order is denied. The
16 Court finds that Husband does not have complete control over when this process will be
17 completed.

18 3) Wife's request for an order that Husband be ordered to provide her with written proof that the
19 annulment has been completed, including official confirmation from the appropriate Greek
20 Orthodox Church authority, is granted, albeit with slight modifications as follows. Within 10 days
21 of the annulment process being completed (however that term is defined for Greek Orthodox
22 religious annulments), Husband shall promptly provide to Wife documentation proving that the
23 annulment has been completed.

24 4) Wife's request for an order that Husband be ordered to provide within 15 days, all documentation
25 demonstrating the status of the annulment process, including but not limited to copies of
26 applications submitted, proof of submission, receipts and invoices and any documents reflecting
27 status and expected timeline, is denied. The Court directs Wife to the documents attached to
28 Husband's Responsive Declaration filed 8/12/2026.

- 1 5) Wife's request for an order requiring Husband to pay Wife's attorney's fees and costs in the
2 amount of \$5,000, pursuant to Family Code Section 271, 2030, and 2032, based on his "failure to
3 comply with the *Judgment* and the necessity of bringing this motion" is denied. The Court does
4 not find good cause to award Wife attorney's fees sanctions under Family Code section 271. The
5 Court also does not find that the fees incurred by Wife were just, reasonable, and necessary, as
6 the Court finds that Husband did keep Wife reasonably updated regarding the steps he was taking
7 and the Judgment does not require him to provide documentary proof of his statements.
- 8 6) Husband's request for Family Code section 271 attorney's fees sanctions is similarly denied.
9 Although Husband was under no obligation to provide documentary proof of the steps he has
10 taken to obtain an annulment, Husband could easily have provided some documentation to
11 provide reassurances to Wife and his unwillingness to do so was not reasonable.
- 12 7) Husband's request for need-based attorney's fees is also denied. The Court does not find that
13 Wife has greater access to funds with which to pay legal fees.
- 14 8) Wife's attorney shall prepare the Findings and Order After Hearing.
- 15 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
16 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
17 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
18 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
19 proposed order after hearing directly to the court. Failure to submit the order after hearing within
20 10 days may allow the other party to prepare a proposed order and submit it to the court in
21 accordance with CA Rules of Court, Rule 5.125(d).
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JAMES PUI CHENG,

Petitioner

VS.

LI CHAN LIN,

Respondent

) Case Number: FDI-24-800045

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER : TEMPORARY EMERGENCY ORDER, PROPERTY CONTROL,
ENFORCE JUDGMENT BY COURT-SUPERVISED SALE OF 1216 32ND AVE, S.F.; WRIT OF
POSSESSION; APPOINT ELISOR; RESERVE \$35,000 FROM SALE

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

1) The parties in this matter are Petitioner James Cheng (Husband) and Respondent Li Lin (Wife).

The parties married on 3/1/2002. The parties disagree regarding their exact date of separation but
they agree they separated in 2018, for a marriage of at least 16 years. Husband is represented by
Tsao-Wu & Yee LLP.

2) On 12/11/2025, a Stipulated Judgment was entered in this matter which incorporated the Marital
Settlement Agreement signed by the parties in October 2025. The Judgment provides in relevant
part:

a. The residence located at 1216 32nd Ave. San Francisco, CA 94122 shall be disposed of
according to the terms of this section.

- 1 b. The residence has been listed for sale and shall remain listed for sale with broker
2 PATRICK MAN (DRE #01147538), and with mutually satisfactory terms of sale,
3 including sales price, until sold.
- 4 c. During the listing of the residence for sale, the parties shall each cooperate in showing the
5 residence to brokers, agents and prospective purchasers, and in causing the residence to
6 be sold.
- 7 d. Upon sale of the property, the net proceeds shall be disbursed as provided below. The
8 term "net proceeds" shall mean gross sales proceeds less the following: (a) Escrow
9 charges; (b) The balances remaining at the time of sale on trust deed encumbrances
10 existing on the date of this Agreement; (c) Usual expenses of sale, including any broker's
11 commissions and other normal costs assessed through escrow; and, (d) Payment to Wife
12 in the amount of \$100,000.00, to satisfy the loan made by her sister toward the
13 downpayment on the residence.
- 14 e. The net proceeds of sale shall be divided equally between the parties. Payment to the
15 parties shall be by separate checks or wire transfers directly from escrow.
- 16 f. The monies due Husband from the sale of the residence shall be reduced by sums
17 necessary to satisfy the Family Law Attorney's Real Property Lien in favor of TSAO-WU
18 & YEE LLP recorded August 14, 2025, in Official Records of the City and County of
19 San Francisco, as document no. 2025066817, which shall be Husband's sole
20 responsibility.
- 21 g. One-half of any capital gains resulting from the sale of the residence shall be paid by
22 each party.
- 23 h. The court in any dissolution of marriage proceeding shall reserve jurisdiction to enforce
24 the provisions of this section in the event a dispute arises between the parties, or at any
25 time when it is appropriate to do so, and to make further orders as may be required,
26 including but not limited to naming a successor broker and/or agent in the event
27 PATRICK MAN becomes unable or unwilling to act as broker, establishing terms of sale
28 and sales price, ordering a sale on terms and conditions which may seem proper to the
29 court, determining the need and liability for improvements, replacements and repairs, and

1 ordering payment of obligations and expenses associated with the residence. Either
2 Husband or Wife may apply to the court for any of these orders. Each party shall perform
3 all acts and execute all listing agreements, escrow instructions, deeds, documents and
4 other papers necessary or convenient to carry out the terms of this section. In the event
5 either party fails or refuses to do so upon request, the court may order the Clerk of the
6 Superior Court or the Clerk's designee to execute documents on his or her behalf.

7 3) On 8/18/2026, Husband filed an ex parte Request for Order seeking an order shortening time.

8 Husband states that Wife is now demanding that she be permitted to buy out Husband's interest in
9 the 32nd Ave. residence. Husband states they have received a "good" offer of \$1.78 million for the
10 residence which expires by its terms on 9/30/2026, but Wife has refused to sign the papers needed
11 to accept the offer. Husband is asking the Court to:

- 12 a. Order Wife to vacate the residence by a reasonable date certain and permit Husband to
13 possess the residence.
- 14 b. Issue a Writ of Possession in the event it is needed.
- 15 c. Supervise the sale and order that the current offer be accepted. Appoint an elisor to sign
16 on Wife's behalf "all listing agreements, escrow instructions, deeds, documents, and
17 other papers necessary or convenient to carry out the order for sale of the residence."
- 18 d. Reserve \$35,000 from Wife's share of the net proceeds, payable directly from escrow to
19 Husband's attorney-client trust account to be reserved for claims by Husband against
20 Wife for (i) rental proceeds received by Wife following entry of Judgment that Wife did
21 not share with Husband, (ii) payments Wife failed to make for PG&E bills for the
22 residence, and (iii) attorney's fees sanctions.
- 23 e. In the alternative, "keep Mr. Man on the job, and adjust the listing price as might be
24 needed and proper after considering his recommendation and the corresponding
25 suggestions of the parties."

26 4) Per the Temporary Emergency (Ex Parte) Orders filed 8/18/2026, the Court granted Husband's
27 request for an order shortening time and set the hearing on Husband's 8/18/2026 Request for
28 Order for 9/10/2026.
29

- 1 5) On 8/19/2026, listing agent Patrick Man filed a declaration. Mr. Man states that he was joint
2 retained by the parties on 8/15/2025 to sell the residence. Mr. Man states that Husband vacated
3 the residence and "It would be easier to sell the residence if it was vacant." Mr. Man states that
4 the parties received two offers on the residence, the first offer was for \$1.575 million (which was
5 rejected at Husband's request). The second offers is for \$1.78 million. Mr. Man states, "I am
6 willing to continue to serve as the broker in this case. I cannot and do not take sides in the dispute
7 between the clients... I will, however, abide by whatever decisions the judge makes in this case
8 regarding the sale of the residence."
- 9 6) On 8/28/2026, Wife filed a Responsive Declaration. Wife states that she moved out of the
10 residence in September 2025 but would occasionally return to the house to pick up mail. Wife
11 also states that both parties still have personal items in the house. Wife states that she offered to
12 purchase the residence from Husband at a price of \$1.8 million and there is "no reason why the
13 Petitioner would not sell the property to me." Wife states she was under the assumption the
14 parties were still negotiating. Wife states that she agreed to accept the \$1.78 million offer, but
15 Husband refused to drop the hearing. Wife states that she objects to the request that funds from
16 her portion of the net sale proceeds be withheld (Wife does not state the basis for her objection).
17 Wife also states that she has signed the paperwork to accept the \$1.78 million offer.
- 18 7) On 9/1/2026, listing agent Patrick Man filed a declaration. Mr. Man confirms that Wife has now
19 signed the purchase agreement. Mr. Man states that it is unknown whether Wife has fully vacated
20 the residence because she still had belongings in the residence the last time he saw. Mr. Man
21 states, "Due to the recent increases in S.F. property values, and at the urging of Mr. CHENG, the
22 buyer increased her offer to \$1.95 million. Both the buyer and the sellers have signed a revised
23 purchase agreement for this amount" which Mr. Man attached as Exhibit 2.
- 24 8) On 9/1/2026, Husband filed a Request for Judicial Notice asking the Court to take judicial notice
25 of a Notice of Federal Tax Lien recorded by the IRS on 10/1/2019 which shows an "unpaid
26 balance of assessment" of \$33,296.55.
- 27 9) On 9/1/2026, Husband filed a Reply Declaration. Husband states that on 3/2/2026, he went with a
28 maid to the residence to do some clean up. Wife asked the maid, "What are you doing in my
29 house," punched the maid in the face, and beat the maid unconscious with a mop handle.

1 Husband states Wife was arrested. Therefore, Wife's statement that she moved out of the
2 residence in September 2025 is untrue. Husband states that Wife has still not removed her
3 belongings from the residence and asks the Court to grant him temporary possession of the
4 residence within 7 days, and a writ of possession, so that Husband can store Wife's belongings in
5 a storage unit. Husband states that Wife now says she will not sign any escrow instructions for
6 her to pay her share of the residence expenses. Husband reiterates his request that an elisor be
7 appointed and that \$35,000 be set side from Wife's share of the net proceeds to cover: Husband's
8 \$15,000 sanctions request, \$11,250 for rent for January 2026 – September 2026, \$737 for Wife's
9 half of insurance premiums, \$550 that Husband paid to PG&E, \$13,408.65 for half of the IRS tax
10 debt (the IRS has offered a settlement amount of \$26,817), less \$8,824 (which Husband contends
11 he owes for half of the mortgage for nine months).

12 10) On 9/1/2026, Husband's attorney Suzan Yee filed a Reply Declaration wherein Ms. Yee contests
13 many of the statements made by Wife in her Responsive Declaration. Ms. Yee also states that she
14 informed Wife that she would be seeking the maximum attorney's fees award for her lack of
15 cooperating and disobedience of the judgment.

16 **B. Findings and Order**

- 17 1) If Wife has not already done so, Wife shall sign the revised purchase agreement (for \$1.95
18 million) no later than Friday, 9/11/2026 at 5:00 PM.
- 19 2) Wife shall sign any and all documents necessary to complete the sale of the residence located at
20 1216 32nd Ave. San Francisco, CA 94122 within 24 hours of being presented with the document
21 for her signature. If Wife fails to sign any document necessary to sell the 32nd Ave. residence
22 within 24 hours of presentation, Husband may file an ex parte Request for Order to request that
23 an elisor be appointed to sign on Wife's behalf. Husband shall attach to his ex parte Request for
24 Order copies of the documents he requests that the elisor sign.
- 25 3) Wife shall remove all of her belongings from the residence located at 1216 32nd Ave. San
26 Francisco, CA 94122 no later than Thursday, 9/17/2026 at 5:00 PM. If Wife fails to comply with
27 this order, the Court intends to award any costs Husband incurs to remove and store Wife's
28 belongings from the residence.
- 29

- 1 4) Effective Thursday, 9/17/2026 at 5:00 PM, Husband is granted temporary exclusive use and
2 possession of the residence located at 1216 32nd Ave. San Francisco, CA 94122 for the purpose of
3 preparing the residence for sale. Wife shall not be permitted to enter the residence starting
4 Thursday, 9/17/2026 at 5:00 PM. If Wife fails to surrender possession of the residence by
5 Thursday, 9/17/2026 at 5:00 PM, Husband may file an ex parte Request for Order to which he
6 attaches a proposed Writ of Possession.
- 7 5) \$35,000 from Wife's share of the net proceeds shall be deposited into a separate, interest-bearing
8 account in Husband's name. This \$35,000 shall be reserved while the Court adjudicates claims by
9 Husband against Wife for (i) rental proceeds received by Wife following entry of Judgment that
10 Wife did not share with Husband, (ii) payments Wife failed to make for PG&E bills for the
11 residence, (iii) attorney's fees sanctions, (iv) Wife's share of the outstanding tax liability, (v)
12 Wife's share of insurance premiums, and (vi) any costs incurred by Husband due to Wife's failure
13 to comply with any of the orders set forth above. Neither party is permitted to withdraw any
14 amount from this account absent written agreement of the parties or a Court order. The escrow
15 instructions shall address the reservation of \$35,000 from Wife's share of the net sale proceeds,
16 and Wife shall sign escrow instructions which include this information. The Court hereby sets a
17 review hearing for **Thursday, 12/10/2026 at 9:00 AM in Dept. 404** to adjudicate this \$35,000. In
18 advance of this hearing date, the parties shall meet and confer to determine how this \$35,000
19 should be distributed. If the parties are unable to reach an agreement, at least 10 calendar days
20 prior to the next hearing date, both parties shall file and serve declarations (not to exceed 10
21 pages in length not including exhibits) explaining how the Court should divide this \$35,000. The
22 parties shall attach as exhibits any documents which support their claims.
- 23 6) Husband's attorney shall prepare the Findings and Order After Hearing.
- 24 7) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
25 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
26 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
27 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
28 proposed order after hearing directly to the court. Failure to submit the order after hearing within
29

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

RANDY C. ALMONTE MEDINA,

Petitioner

VS.

GERALDINE AYERDIS,

Respondent

) Case Number: FDI-24-800741

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear at 9:00 AM on 9/10/2026 in Department 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) Petitioner Randy Medina (Father) and Respondent Geraldine Ayerdis (Mother) have three minor children together, Randy (DOB 12/12/2019, age 6), Rylan (6/8/2021, age 5), and Reagan (DOB 5/17/2025, age 1). Father lives in Benecia; Mother lives in San Francisco. The parties share joint legal custody of the children.
- 2) At a 6/11/2026 hearing, the Court maintained Father's parenting time as to Randy and Rylan, i.e., the first 3 weekends of every month, from Friday school pick up to Monday school drop off, with an extra day if there is a 3-day weekend during his weekend. As to Reagan, the Court ordered that beginning 6/20/2026, Father shall have parenting time from Saturday at 10am to Sunday at 1pm on the first 3 weekends of every month, with Mother conducting both drop off and pick up at Father's home in Benecia. The Court also ordered that Father may have 2 additional 3 to 4 hour

1 evening visits during the week, and ordered the parties to meet and confer regarding the dates and
2 times and locations (San Francisco or Benecia) of the visits. The Court also ordered that each
3 party is entitled to FaceTime calls with the children (up to 30 minutes) when the children are in
4 the other party's care. Finally, the Court ordered the parties to meet and confer regarding Father's
5 request to take the children to the Dominican Republic at the end of the year. The Court set the
6 matter for a review hearing on 9/10/2026.

- 7 3) Both parties have filed update declarations, which the Court has reviewed and considered. The
8 Court has also reviewed the disposition report from Family Court Services, which sets forth the
9 parties' respective positions regarding custody, parenting time, and domestic and international
10 travel.

11 **B. Findings and Orders**

- 12 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
13 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
14 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
15 child is the United States.
- 16 2) **The parties are ordered to appear in person or via Zoom Video at 9am on 9/10/2026 in**
17 **Department 404.**
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SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNA ROSE NICOLETTI WILLIAMS,

Petitioner

VS.

REAGAN BOYD WILLIAMS,

Respondent

) Case Number: FDI-25-801799

) Hearing Date: September 10, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The parties are ordered to appear at 9:00 AM on 9/10/2026 in Department 404 in-person or by Zoom video. If a party chooses to appear by Zoom, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties in this matter are Petitioner Jenna Williams (Mother) and Respondent Reagan Williams (Father). The parties married on 6/24/2006. Mother contends the parties separated on 6/8/2025, for a marriage of 18 years and 11 months. Father stated “TBD” for the date of separation in his Response to the Petition. The parties have two minor children, Emerson (DOB: 9/28/2007) and Porter (DOB: 1/19/2010). Mother is represented by attorney Julia Bressman. Father is represented by Delacey, Riebel & Shindell, LLP.
- 2) On for hearing is Mother’s Order to Show Cause and Affidavit for Contempt filed 7/7/2026.
- 3) Mother alleges that Father violated the Findings and Order After Hearing filed 2/17/2026 by:
 - a. Failing to meet and confer regarding Smith / Ostler child and temporary spousal support, and

- 1 b. Failing to pay her \$404,108 in Smith / Ostler child and temporary spousal support due for
2 9/15/2025 – 3/30/2026
- 3 4) Mother alleges that Father violated the Findings and Order After Hearing filed 6/12/2026 by:
- 4 a. Failing to serve on Mother code-compliant and verified responses to Form Interrogatories
5 – Family Law Set One by close of business on 6/10/2026
- 6 b. Failing to serve on Mother code-compliant and verified Response to Request for
7 Production of Documents and Things, Set One by close of business on 6/10/2026
- 8 5) In addition to finding Father in contempt of the orders set forth above, Mother asks the Court to
9 order:
- 10 a. Father to pay Mother \$404,108.60 within 5 days of the trial on this matter;
- 11 b. Father to serve (i) his Response to Request for Production of Documents and Things, Set
12 One and (ii) Form Interrogatories – Family Law, Set One within 5 days of the trial on this
13 matter;
- 14 c. Father to pay attorney’s fees sanctions in an amount to be determined after Father’s
15 arraignment and prior to trial pursuant to Code of Civil Procedure section 1218(a) and
16 *Gould v. Superior Court* (2006) 145 CA4th 1;
- 17 d. Father to perform community service of up to 120 hours pursuant to Code of Civil
18 Procedure section 1218(c)(1);
- 19 e. Father to be imprisoned in the event Father does not comply with all orders made at trial
- 20 f. Modify the support orders such that Smith/Ostler support is due 60 days after the end of
21 each quarter.
- 22 6) Per the Proof of Personal Service filed 8/3/2026, Father was personally served with Mother’s
23 Order to Show Cause Re: Contempt and related pleadings on 7/29/2026.
- 24 7) Father has not filed any pleadings responding to Mother’s Order to Show Cause Re: Contempt
25 filed 7/29/2026.

26 **B. Findings and Order**

- 27 1) **The parties are ordered to appear.**
- 28
- 29